

A.D. 1910.

— And whereas by the Cavehill and Whitewell Tramway Order 1881 certain persons therein named were incorporated into a company by the name of the Cavehill and Whitewell Tramway Company and were authorised to construct the tramway in the county of Antrim in that Order described :

59 & 60 Vict.
c. cexlvi.

And whereas by the Belfast Corporation Act 1896 the boundaries of the city of Belfast were extended so as to include certain portions of the county of Antrim in which a part of the tramway of the Cavehill and Whitewell Tramway Company (herein-after called "the Cavehill Company") was situate :

2 Edw. 7
c. clxxx.

And whereas by the Cavehill and Whitewell Tramways Act 1902 the Cavehill Company were authorised to reconstruct and equip for working by electrical traction the tramway authorised by the Order of 1881 and the Cavehill Company have in pursuance of the powers contained in that Act adapted and equipped the said tramway and are now working the same by electrical power :

And whereas by an agreement dated the twelfth day of April one thousand nine hundred and ten and made between the Cavehill and Whitewell Tramway Company of the one part and the lord mayor aldermen and citizens of the city of Belfast of the other part it has been agreed between the Cavehill Company and the Corporation that the company should sell and the Corporation should acquire the tramways of the company and the electrical equipment thereof and the property of the company specified in the said agreement on the terms and subject to the conditions therein set forth :

And whereas it is expedient that the said agreement should be confirmed and that the powers in this Act contained should be conferred upon the Corporation and that provisions should be made for the winding up and dissolution of the Cavehill Company :

And whereas it is expedient that powers of borrowing money for the purposes of this Act should be conferred upon the Corporation and that the other provisions contained in this Act should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the tenth day of March one

thousand nine hundred and ten after ten clear days' notice A.D. 1910.
by public advertisement of such meeting and of the purpose
thereof in the Belfast News-Letter a newspaper published and
circulating in the city (such notice being in addition to the
ordinary notices required for summoning such meeting) resolved
that the expense in relation to promoting the Bill for this Act
should be charged on the general purposes fund or rate of
the city :

And whereas such resolution was published twice in the
Belfast News-Letter and has received the approval of the Chief
Secretary :

And whereas the propriety of the promotion of the Bill for
this Act was confirmed by an absolute majority of the whole
number of the council at a further special meeting held in
pursuance of a similar notice on the twelfth day of April one
thousand nine hundred and ten being not less than fourteen
days after the deposit in Parliament of the Bill for this Act :

And whereas the persons qualified to vote at an election of
the members of the council of the city have by resolution in
the manner provided in the Borough Funds (Ireland) Act 1888
approved of the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say) :—

1. This Act may be cited as the Belfast Corporation (Tram- Short title.
ways) Act 1910.

2. In and for the purposes of this Act the expression "the Interpretation.
Corporation" means the lord mayor aldermen and citizens of the
city of Belfast ;

The expression "the Cavehill Company" means the Cavehill
and Whitewell Tramway Company ;

The expression "the transferred undertaking" means the
tramways and the works plant and property of the Cavehill
Company as defined in the agreement set forth in the schedule
to this Act and all the rights powers and privileges of the
Cavehill Company in reference to such tramways works plant
and property.

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Confirmation
of agree-
ment.

3. The agreement made the twelfth day of April one thousand nine hundred and ten between the Cavehill Company of the one part and the Corporation of the other part set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and the sale therein mentioned shall take effect and the transferred undertaking therein mentioned shall subject to the provisions of the said agreement and in accordance with the terms thereof become vested in the Corporation by virtue of this Act and without any conveyance or other instrument.

Powers to
Corporation
over trans-
ferred under-
taking.

4.—(1) As from the acquisition by the Corporation of the undertaking of the Cavehill Company under the said agreement the transferred undertaking shall for all purposes including the maximum fares which may be charged on that undertaking form part of the tramway undertaking of the Corporation and the Corporation shall in addition to the rights powers duties and privileges of the Cavehill Company in respect of the transferred undertaking have and may exercise and be subject to in respect of the transferred undertaking the same rights powers duties and liabilities as they have or are subject to in relation to the tramway undertaking of the Corporation.

(2) The Corporation may maintain and manage and may sell lease or dispose of all or any part or parts of the lands of the Cavehill Company transferred to them by this Act.

Receipt of
company to
be sufficient
discharge to
Corporation.

5. The receipt of the Cavehill Company shall be a sufficient discharge to the Corporation for any purchase or other moneys paid to the Cavehill Company by the Corporation under or in pursuance of the said agreement notwithstanding the existence of any mortgage debenture charge or other incumbrance affecting the undertaking of the Cavehill Company or any part thereof or affecting the tramways or other property agreed to be surrendered or sold to the Corporation by the said agreement or any part thereof respectively Provided always that nothing herein contained shall prejudice or affect any rights or claims of any mortgagee debenture holder or other incumbrancer of the Cavehill Company against any such moneys.

Company to
be wound up
and dis-
solved.

6. On the completion of the purchase of the undertaking of the Cavehill Company under this Act the Cavehill Company shall subject to the provisions of this Act be wound up in the same manner and with the same incidents as if the Cavehill

Company were a company registered under the Companies (Consolidation) Act 1908 and had on the day of the completion of the said purchase passed a special resolution requiring the Cavehill Company to be wound up voluntarily and the Cavehill Company shall thereupon be deemed to have passed an effective resolution for such winding up and for the purposes of such winding up the Cavehill Company shall from and after the passing of this Act be deemed to be registered in Ireland under the said Acts and for the purposes of calling and holding meetings and passing resolutions and other matters incident to such winding up resolutions of meetings of the Cavehill Company convened and held in pursuance of and in accordance with the Act of Parliament of and the Orders in Council relating to the Cavehill Company and the Acts incorporated therewith respectively may and shall take effect as resolutions of a company duly registered And the Cavehill Company shall within fourteen days of the appointment of the liquidator or liquidators in such winding up pay to the said liquidator or liquidators all moneys then in their hands or under their control and in the meantime shall hold such moneys in trust for the said liquidator or liquidators and all such moneys shall be applied by the said liquidator or liquidators as part of the assets of the Cavehill Company.

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On the completion of the winding up of the Cavehill Company in accordance with the provisions of this Act the Cavehill Company shall by virtue of this Act be dissolved.

7. Notwithstanding any provision in any Act of Parliament or Order relating to any of the existing tramways of the Cavehill Company the Conveyance of Mails Act 1893 shall extend and apply to all the tramways of the Cavehill Company as if the same had been authorised by an Act of Parliament passed since the first day of January one thousand eight hundred and ninety-three and to the Corporation as the body or person owning such tramways.

Application
of Convey-
ance of
Mails Act
1893.

8.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connexion with the tramways of the Cavehill

Use of tram-
way posts by
Postmaster-
General.

A.D. 1910. Company (in this section referred to as "the tramways") transferred to the Corporation under the provisions of this Act and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

- (A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (B) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such

posts or standards farthest from the trolley wires A.D. 1910.
Any difference as to the conditions of attachment
shall be determined as herein-after provided:

- (E) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (G) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:
- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as herein-after provided:
- (I) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants:

A.D. 1910.

(J) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

Power to
borrow.

9.—(1) The Corporation may from time to time in addition to any moneys which they are now authorised to borrow or raise by the creation and issue of Belfast Corporation stock raise by the creation and issue of Belfast Corporation stock in the manner provided by the Belfast Corporation Act 1889

for the following purposes respectively any sum or sums not exceeding the following sums respectively (that is to say):— A.D. 1910.

For paying the costs of this Act as herein-after defined the sums requisite for that purpose;

For or in connexion with the purchase of tramways and equipment and the lands and property under the agreement set out in the schedule to this Act the sums requisite for that purpose.

(2) Money raised under this section shall be applied only to the purposes for which it is authorised to be raised and to which capital is properly applicable and not otherwise.

(3) The amount of the annual sums payable to the loans fund established under the said Act of 1889 towards the redemption and extinction of stock created and issued by the Corporation under this Act shall be such as with accumulations at the rate of three pounds per centum per annum will suffice to redeem at par such stock within the following periods from the date of the creation thereof (that is to say):—

For the purpose of paying the costs of this Act within a period not exceeding five years from the passing of this Act;

For the other purposes of this Act within a period not exceeding thirty years from the date of the borrowing.

(4) The sums payable to the said loans fund in each year for the payment of dividends on and towards redemption and extinction of the stock created and issued under this Act for the several purposes herein-before stated shall be payable out of the tramway revenue and so far as such revenue is not sufficient for that purpose out of the general purposes fund or rate.

10. In estimating every year under the provisions of the Acts relating to the Corporation the amounts required for the several purposes to which the general purposes rate is applicable the Corporation or the committee of the Corporation as the case may be shall include as nearly as may be the amount which will be required for the purposes of this Act payable out of the general purposes fund or rate and the amount required for payment to the loans fund established under the said Act of 1889 in respect of the Belfast Corporation stock created and issued under this Act for those purposes which shall be placed

Estimates
for general
purposes
rate to in-
clude amount
required for
purposes of
this Act.

A.D. 1910.

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1910.

AGREEMENT made the 12th day of April one thousand nine hundred and ten between the CAVEHILL AND WHITEWELL TRAMWAY COMPANY (herein-after called "the Company") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS of the CITY OF BELFAST (herein-after called "the Corporation") of the other part.

Stamp.

Ten
shillings.

WHEREAS the Company under the authority of their several Orders in Council and Act of Parliament own and work certain tramways commencing at Chichester Park Gate Antrim Road in the city of Belfast and terminating at Glengormley in the county of Antrim :

And whereas the Company also hold about thirty-two acres of land at Drumnadrough under fee farm grant dated eighth November one thousand eight hundred and ninety-three and made between Robert Armstrong of the one part and the Company of the other part on portion of which the car-sheds and workshops of the Company have been built which land is subject to a rentcharge of one hundred and thirty pounds per annum :

And whereas the Company also hold about two acres three roods thirty-five perches of land at Glengormley being part of the land granted under a fee farm grant dated thirteenth day of May one thousand eight hundred and seventy-five and made between William Rodgers of the one part and Andrew Woods of the other part on which the pleasure grounds and buildings known as "Bellevue Gardens" have been laid out and erected the whole of the said land comprised in the said fee farm grant being subject to a fee farm rent of thirty pounds sixteen shillings and threepence but the owners of the residue of the land granted by the said fee farm grant being under obligation to pay the said rent and indemnify the Company against the payment thereof :

And whereas the Company have agreed to sell to the Corporation their said tramways and the said land at Drumnadrough and the said land at Glengormley and the equipment and fittings thereof respectively for the consideration and on and subject to the terms and conditions herein-after mentioned :

And whereas the said sale cannot be carried into effect without the authority of Parliament :

A.D. 1910.

Now it is hereby agreed as follows:—

(1) The Company shall sell and the Corporation shall purchase the said tramways of the Company and the said land at Drumnadrough and the said land at Glengormley and the equipment and fittings of the said tramways and lands respectively including all buildings plant machinery rolling stock cars apparatus and utensils connected with the said tramways and lands respectively together with all rights powers privileges and authorities of the Company in relation to the said tramways and equipment thereof and the said lands respectively other than cash investments and outstanding claims by the Company (herein-after collectively referred to as "the transferred undertaking") for such sum as an arbitrator (being a person experienced in tramway matters) to be appointed on the application of the Company or the Corporation by the Board of Trade may decide to be the value of the transferred undertaking which sum is herein-after referred to as "the purchase money" Provided that the Corporation shall take over and pay to the Company the actual cost as per the Company's books of all stores on hand at the date of transfer and reasonably and properly provided in the ordinary course of business.

(2) The provisions of the Common Law Procedure Amendment Act (Ireland) 1856 and any subsisting statutory modification thereof shall apply to the said arbitration and the costs of the reference and award shall be paid by the Corporation.

(3) The Corporation will at their own expense promote a Bill during the present session (if possible) failing which during the session of 1911 to give effect to this agreement and to authorise the Corporation to raise the money required for payment of the Company and the Corporation shall use their best endeavours to ensure that such Bill shall be passed into law and the Company will at the cost of the Corporation concur in such promotion and will do all acts and execute all documents which may require to be done or executed by the Company in or in connexion with such promotion.

(4) The said sale shall take effect at midnight on the day immediately following the expiration of one calendar month from the date of the said arbitrator's award and from that hour the transferred undertaking shall be transferred to and vested in the Corporation freed and discharged from all charges or incumbrances thereon other than the aforesaid rentcharges on lands and thenceforth the Corporation shall in their own name and for their own benefit be entitled to the possession of and shall have and hold the transferred undertaking and such transfer and vesting is herein-after referred to as "the transfer."

(5) The purchase money shall be due and payable on the day immediately following the expiration of one calendar month from the

date of the said arbitrator's award and the Corporation shall pay to the Company interest at the rate of four per centum per annum upon the said sum (or upon so much thereof as shall for the time being remain unpaid) from such day until payment thereof. A.D. 1910.

(6) Until the transfer the transferred undertaking shall be properly maintained and carried on by the Company as heretofore in the ordinary course of business but the Company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the transferred undertaking and the proper conduct of the affairs of the Company and the Company shall at the date of transfer deliver the transferred undertaking to the Corporation in good repair and condition and in as good and efficient working order as the same is now in reasonable wear and tear excepted.

(7) The Company shall bear and pay all outgoings and liabilities of every kind and liabilities in respect of causes of action existing at the time of the transfer and shall be entitled to receive and recover all rents profits and other moneys due or accruing due to them up to the time of the transfer as if this agreement had not been entered into. Provided that any outgoings or liabilities in connexion with the transferred undertaking attributable to the period prior to the transfer but not due or payable at the time of the transfer shall be apportioned between the Company and the Corporation.

(8) All agreements contracts conveyances leases deeds and other instruments affecting the transferred undertaking and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually and shall be read and construed as if instead of the Company the Corporation had been a party thereto and the Corporation shall indemnify the Company from all actions suits claims or demands whatsoever in respect of the same and of any obligations attaching to the Company by or under the several Orders in Council and Act of Parliament relating to the Company and accruing or arising after the transfer.

(9) The Corporation Bill to contain all necessary provisions for winding up and dissolving the Company voluntarily and dealing with its affairs and shall if possible provide for such winding up being effected as if the Company were a Company incorporated under the Companies (Consolidation) Act 1908 and were being wound up voluntarily.

(10) The Company shall not (subject to the consent of the authorities) proceed to the second reading of their Bill in the House of

A.D. 1910. Lords unless or until the Corporation Bill is rejected in the House of Commons nor if the Corporation Bill passes through the House of Commons until the time for petitioning against it in the House of Lords has expired and if the Corporation Bill is then unopposed the Company will withdraw their Bill. If the Corporation fail to obtain leave to introduce their Bill the Company to withdraw their Bill on payment by the Corporation to the Company of all reasonable costs and expenses in connexion therewith to date of withdrawal but such withdrawal being only made to preserve the position of the parties pending the introduction of a Bill to confirm the agreement by the Corporation in the next session shall not in any way prejudice the Company.

(11) This agreement is conditional upon the same being confirmed by the Company in general meeting.

(12) This agreement is subject to the sanction of Parliament being obtained thereto in the present or next ensuing session of Parliament and is subject to any alterations which Parliament may see fit to make therein but if any material alteration is so made either party may withdraw from this agreement.

In witness whereof the parties hereto have hereunto affixed their corporate seals the day and year first herein written.

Present when the corporate seal of the
Cavehill and Whitewell Tramway
Company was affixed hereto—

RICHARD B. PARK }
WILLIAM ARMSTRONG } Directors.

WILLIAM RODDEN

Secretary.

(L.S.)

Present when the corporate seal of the
city of Belfast was affixed hereto—

R. J. McMORDIE

Lord Mayor.

R. MEYER

Town Clerk.

(L.S.)

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